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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

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No. 2456/43 - THURSDAY, OCTOBER 02, 2025

(Published by Authority)

PART I : SECTION (I) — GENERAL

Government Notifications

L.D.-B 3/2023(11)

PERSONAL DATA PROTECTION ACT, No. 9 of 2022

RULES made by the Data Protection Authority of Sri Lanka, under section 52, read with sections 36 and 37 of the Personal Data Protection Act, No. 9 of 2022.

RAJEEVA BANDARANAIKE,
Chairman,
Data Protection Authority of Sri Lanka.

Colombo,
26th September, 2025.

RULES

1. These Rules may be cited as the Personal Data Protection (Cadre Positions and Scheme of Recruitment) Rules No. 1 of 2025.
2. The cadre positions of the Data Protection Authority of Sri Lanka shall be as specified in Column I of the First Schedule hereto and the number of positions and salaries applicable to such cadre positions shall be as specified in the corresponding entries in Columns II and III of that Schedule.
3. The scheme of recruitment approved by the Department of Management Services in respect of the cadre position of the Data Protection Authority of Sri Lanka shall be as specified in the Second Schedule hereto.

FIRST SCHEDULE

(Rule 2)

	<i>Column I</i>	<i>Column II</i>	<i>Column III</i>
	<i>Cadre Position</i>	<i>No. of Positions</i>	<i>Salary (all inclusive) Rs.</i>
1	Director General	1	660,300.00
2	Senior Director: Regulatory Strategy	1	498,800.00
3	Senior Director: Market Supervision Capacity Building	1	
4	Director: Human Resources and Administration	1	391,550.00
5	Director: Legal and Enforcement	1	
6	Director: Dispute Resolution	1	
7	Director: Finance	1	
8	Internal Auditor	1	
9	Assistant Director: Regulatory Strategy	1	194,675.00
10	Assistant Director: Capacity Building	1	
11	Assistant Director: Information Technology	1	
12	Assistant Director: Human Resources and Administration	1	
13	Assistant Director: Finance	1	
14	Assistant Director: Legal and Enforcement	1	
15	Assistant Director: Dispute Resolution	1	
16	Assistant Director: Market Supervision	1	
17	Associate Officer (Technical)- Regulatory Strategy	I	59,300.00
18	Associate Officer (Technical)- Market Supervision	I	
19	Associate Officer (Technical)- Capacity Building	I	
20	Associate Officer (Technical) - Information Technology	I	
21	Associate Officer (Technical) - Legal and Enforcement	I	
22	Associate Officer (Technical) - Dispute Resolution	I	
23	Management Assistant (Non-Technical)	14	52,800.00
24	Office Assistant	5	47,800.00

SECOND SCHEDULE

(Rule 3)

DATA PROTECTION AUTHORITY

SCHEME OF RECRUITMENT FOR THE POST OF DIRECTOR GENERAL

1. Employee Category

Senior Manager

2.2.1 Broad definition of the nature of functions assigned to the employees of the category

The Director General is the highest-level Executive Officer of the institution. The Director General is accountable and responsible for all the activities, and administrative and financial affairs of the institute who under the general direction and control of the Board of Directors, direct the affairs and transactions of the Data Protection Authority exercise, perform and discharge of powers, functions and, duties of the Board as may be delegated by the Board and provide leadership and encouragement to the staff of the institute, for excelling in official achievements and generation and transfer of technology as per section 36(4) of the Personal Data Protection Act, No. 9 of 2022.

2.2 Posts falling within this service category

Director General

2.3 Job description

- i. The Director General is the highest-level Executive Officer of the institution. The Director General shall, subject to the general direction and control of the Board, be charged with the direction of the affairs and transactions of the Authority, the exercise, performance, and discharge of its powers, duties and functions, and the administration and control of the officers and employees of the Authority as per section 36(4) of the Personal Data Protection Act, No. 9 of 2022.
- ii. Take overall responsibility for administration, financial and operational control of the Authority under the direction of the Board of Directors.
- iii. Chair the Executive Committee of the Authority comprising of Senior Directors, Directors, and other Heads of Divisions.
- iv. Formulate plans and strategies including identifying new trends related to personal data protection and data privacy and initiate activities to strengthen stakeholder engagement.
- v. Formulate plans for development projects related to personal data protection and direct activities to increase awareness among identified target groups.
- vi. Advise the Board of Directors on policy matters as and when required and prepare official reports/ documents/ board papers for the consideration of the Board of Directors.
- vii. Provide leadership to create a conducive corporate culture, internal coordination and teamwork.
- viii. Represent the Authority at meetings of other institutions as directed by Chairman and the Board.
- ix. Attend to matters related to international agencies and development partners.

- x. Represent the Government and Data Protection Authority internationally on matters relating to data protection with the approval of the Board and the Minister.
- xi. Coordinate with relevant Ministries to ensure smooth functioning of the Authority.
- xii. Monitor research and development work identified and conducted by all Divisions.
- xiii. Perform any other duties as assigned by the Head of the Institution.

2.4 Nature of Appointment

- i. Fixed-term contract initially for a period of three (03) years with entitlement to Employees' Provident Fund and Employees' Trust Fund.
- ii. The renewal of this contract will depend on the needs of the Data Protection Authority. based on the job holder's performance.
- iii. Any eligible officer in public service seeking secondment to this position is responsible for coordinating with their line Ministry to release him/her from the service on secondment basis under the prevailing provisions specified by the Ministries in charge of Public Administration, Finance. and other authorities. They should submit their applications through the Heads of the respective Ministries/Departments/institutions.
- iv. The secondment period is initially for one (01) year and the renewals will be subject to the job holder's performance and other institutional requirements.

3. Emoluments

- 3.1 **Salary and Allowances:** All-inclusive monthly salary of Rs 660,300/- (Six Hundred Sixty Thousand and Three Hundred Rupees). This is the salary decided as per the provision of the Personal Data Protection Act, No. 9 of 2022 and the Cabinet Decision dated 22.07.2024 pertaining to the Cabinet Memorandum No. 24/ 1298/630/014 on payment of salaries and allowances of Data Protection Authority.
- 3.2 In every letter of appointment, the salary to be mentioned.

4. Recruitment to the post of Director General

4.1 Qualifications

4.1.1 External

- (a) A Bachelor 's Degree recognized by the University Grant Commission of Sri Lanka in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management, Business Administration, Economics or any other Degree relevant to the post. recognized by the University Grant Commission of Sri Lanka

and

Postgraduate Degree (Master's) in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management, Business Administration, Economics or any other field relevant to the post or Associate/Fellow Membership of a recognized professional institution in Accountancy, Management, Information Technology or related field

with

At least fifteen (15) years of managerial experience of which 05 years should be in a senior managerial level with a proven track record in a public corporation. statutory board, and fully government owned company. or a reputed mercantile establishment after obtaining the first Degree.

or

(b) A Bachelor's Degree in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management, Business Administration, Economics or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

and

PhD Degree in a field relevant to the post

with

At least five (05) years of experience at Senior Management Level with a proven track record in a public corporation, statutory board, or fully government owned company, or a reputed mercantile establishment, after obtaining the PhD degree.

4.1.2 Internal

Having obtained the qualifications required by the external candidates in (a) or (b) above

and

Proven ability to lead and direct multi-disciplinary teams together with experience in proper deployment and efficient management of human and other resources.

4.2 Age

Age should be not less than 35 years and not more than 55 years.

4.3 Other

Every applicant -

- i. Should be a citizen of Sri Lanka.
- ii. Should be physically and mentally fit to discharge the duties of the post well and to serve in any part of the Island.
- iii. Should be of excellent moral character.
- iv. Should have a good command of the English and Sinhala/Tamil language as interactions with high level national institutions, international agencies and other institutions overseas is a job requirement.
- v. Familiarity with the global trends in the digital ecosystem, data protection/privacy and related legal instruments, national priorities to mainstream digitalization, and related knowledge will provide an advantage.
- vi. Should sign a Non-Disclosure Agreement with the Authority to maintain confidentiality of the duties and associated information that could be defined as sensitive.
- vii. Any other applicable terms and conditions as specified in the Personal Data Protection Act, No. 9 of 2022.

4.4 Recruitment Procedure

As determined by the Board of Directors, recruitment shall be done after calling applications through a public advertisement or a Newspaper advertisement followed by a structured interview conducted by a panel appointed by the appointing authority.

- i. All recruitments to this category shall be strictly in compliance with the provision of this Scheme of Recruitment.
- ii. The Human Resources and Administration Manual of Procedure of the Authority approved by the Department of Public Enterprises shall be applicable to terms of employment after recruitment and all matters pertaining to that.
- iii. The provision in this Scheme of Recruitment shall supersede the provisions in the Manual in respect of all matters provided in this Scheme of Recruitment.

4.5 Marks allocated for the Interview

Marks allocated shall be as follows:

Relevant additional experience	- 30 Marks
Relevant additional Educational/professional qualifications	- 30 Marks
Other achievements	- 15 Marks
Performance at the interview	- 25 Marks
	<u>- 100 Marks</u>

Appointments will be made purely in order of merit.

4.6 Qualifying Date

The applicant can be treated as qualified only if he/she has completed the necessary qualifications specified under 4.1, 4.2, and 4.3 before the closing date of applications.

4.7 Extension of Service

The term of an employee contracted to this position may be extended at the end of the contract period provided that his / her performance and conduct has been satisfactory during the above period.

4.8 Acting Period

An internal employee who is already contracted under another post will be subjected to an acting period of one year if appointed to this position.

5. Appointing Authority

The Appointment Authority will be the Board of Directors of the Data Protection Authority.

DATA PROTECTION AUTHORITY

SCHEME OF RECRUITMENT FOR THE POST OF SENIOR DIRECTOR

I. Employee Category :

Senior Manager,

2.2.1 Broad definition of the nature of functions assigned to the employees of the category -

Management Functions, relating to the role conferred upon Institution specifically assigned to the post, by the Board of Directors of the Institution, to facilitate/ support the role of the Director General as an immediate subordinate to the Director General. The officers of this category have to bear the responsibility and accountability of Institutional Management, next to the Director General.

2.2 Posts falling within this service category -

Senior Director - Regulatory Strategy

Senior Director - Market Supervision and Capacity Building

2.3 Job Description -

2.3.1 Senior Director - Regulatory Strategy -

- i. Formulate rules, guidelines, and prescriptions to be issued under the Personal Data Protection Act, No. 9 of 2022.
- ii. Draft regulations to be issued by the Minister in accordance with the provisions of the Act.
- iii. Recommend adequacy decisions to the Minister relating to cross-border data flows after studying the relevant written law and enforcement mechanisms in other countries.
- iv. Issue general directives and instructions to data controllers and processors.
- v. Establish standards in relation to data protection, data storage, data processing, and other related matters in accordance with the Act.
- vi. Develop criteria to recognize certifications and certifying bodies.
- vii. Ensure effective domestic compliance of data protection obligations under international conventions.
- viii. Make recommendations to the Government on all matters relating to data protection.
- ix. Undertake research into the use and impact of new technologies on the processing of personal data.
- x. Issue licenses to controllers and processors requiring a license for the purpose of regulating identity management and related services.
- xi. Carry out any other function related to Regulatory Strategy assigned by the Director General or the Board.

2.3.2 Senior Director - Market Supervision and Capacity Building -

- i. Engage with designated Data Protection Officers of Public and Private Sector entities and provide instructions where needed.
- ii. Monitor and examine all data processing operations to ensure due compliance by controllers and processors and issue specific directives to controllers and processors as required.
- iii. Receive personal data breach notifications. review them, and take necessary action as appropriate.
- iv. Receive personal data protection impact assessments, review them, and issue written instructions to take additional measures to mitigate risk .
- v. Carry out periodic evaluations into data processing activities carried out by controllers and processors.
- vi. Facilitate or undertake training based on international best practices for controllers and processors to ensure the effective implementation of the Personal Data Protection Act, No. 9 of 2022.
- vii. Promote studies and educational activities relating to data protection, including organizing and conducting seminars, workshops and symposia.
- viii. Manage technical cooperation and exchange in the area of data protection with other organizations including foreign data processing authorities and international or inter governmental organizations.
- ix. Carry out awareness programmes targeting multiple stakeholders in accordance with an annual plan approved by the Board.
- x. Carry out any other function related to Market Supervision, Capacity Building and Awareness Creation assigned by the Director General or the Board.

2.4 Nature of Appointment -

- i. Fixed-term contract initially for a period of three (03) years with entitlement to Employees' Provident Fund and Employees' Trust Fund.
- ii. The renewal of this contract will depend on the needs of the Data Protection Authority, based on the job holder's performance.
- iii. Any eligible officer in public service seeking secondment to this position is responsible for coordinating with their line Ministry to release him/her from the service on secondment basis under the prevailing provisions specified by the Ministries in charge of Public Administration, Finance, and other authorities. They should submit their applications through the Heads of the respective Ministries/Departments/institutions.
- iv. The secondment period is initially for one (01) year, and the renewals will be subject to the job holder's performance and other institutional requirements.

3. Emoluments

- 3.1 Salary and Allowances: All-inclusive monthly salary of Rs 498,800/- (Four Hundred Ninety Eight Thousand and Eight Hundred Rupees). This is the salary decided as per the provision of the Personal Data Protection Act, No. 9 of 2022 and the Cabinet Decision dated 22.07.2024 pertaining to the Cabinet Memorandum No. 24/1298/630/014 on payment of salaries and allowances of Data Protection Authority.

3.2 In every letter of appointment, the salary to be mentioned.

4. Recruitment to the post of Senior Director

4.1 Qualifications

4.1.1 External

Senior Director - Regulatory Strategy

- (a) A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

and

Postgraduate Degree (Master's) in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other field relevant to the post, or Associate/Fellow Membership of a recognized professional institution in Information Technology or related field or be an Attorney-at-Law

with

At least twelve (12) years of managerial experience of which 03 years should be in a Senior Management position within public or private sector of successful policy leadership with evidence of handling strategic issues, preferably in regulatory environment, after obtaining the first Degree or obtaining Associate Membership of a recognized professional institution or taking oaths as an Attorney-at-law.

or

- (b) A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

and

PhD Degree in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other field relevant to the post

with

At least four (04) years of experience at Senior Management Level within public or private sector of successful policy leadership with evidence of handling strategic issues, preferably in regulatory environment, after obtaining PhD degree.

Senior Director - Market Supervision and Capacity Building

- (a) A Bachelor 's Degree recognized by the University Grant Commission of Sri Lanka in Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management, Business Administration, Economics or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

and

Postgraduate Degree (Master's) in Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management, Business Administration, Economics or any other field relevant to the post, or Associate/Fellow Membership of a recognized professional institution in Information Technology, Accounting, Auditing or related field or be an Attorney-at-Law

with

At least twelve (12) years of managerial experience of which 03 years should be in a Senior Management level within public or private sector preferably with evidence of supervisory examination and capacity building in regulatory environment, after obtaining the first Degree or obtaining Associate Membership of a recognized professional institution or taking oaths as an Attorney-at-law.

or

- (b) A Bachelor 's Degree recognized by the University Grant Commission of Sri Lanka in Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management, Business Administration, Economics or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

and

PhD Degree in Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management, Business Administration, Economics or any other field relevant to the post

with

At least four (04) years of senior management experience within public or private sector preferably with evidence of supervisory examination and capacity building in regulatory environment, after obtaining PhD degree.

4. 1.2 Internal

Having obtained the qualifications required by the external candidates above.

4.2 Age

Age should be not less than 35 years and not more than 55 years.

4.3 Other

Every applicant -

- i. Should be a citizen of Sri Lanka.
- ii. Should be physically and mentally fit to discharge the duties of the post well and to serve in any part of the Island.
- iii. Should be of excellent moral character.
- iv. Should have a good command of the English and Sinhala/Tamil language as interactions with high level national institutions, international agencies and other institutions overseas is a job requirement.

- v. Familiarity with the global trends in the digital ecosystem, data protection/privacy and related legal instruments, national priorities to mainstream digitalization and related knowledge will provide an advantage.
- vi. Should sign a Non-Disclosure Agreement with the Authority to maintain confidentiality of the duties and associated information that could be defined as sensitive.
- vii. Any other applicable terms and conditions as specified in the Personal Data Protection Act, No. 9 of 2022.

4.4 Recruitment Procedure

As determined by the Board of Directors, recruitment shall be done after calling applications through a public advertisement or a Newspaper advertisement followed by a structured interview conducted by a panel appointed by the appointing authority.

- (i) All recruitments to this category shall be strictly in compliance with the provision of this Scheme of Recruitment.
- (ii) The Human Resources and Administration Manual of Procedure of the Authority approved by the Department of Public Enterprises shall be applicable to terms of employment after recruitment and all matters pertaining to that.
- (iii) The provision in this Scheme of Recruitment shall supersede the provisions in the Manual in respect of all matters provided in this Scheme of Recruitment.

4.5 Marks allocated for the Interview

Marks allocated shall be as follows:

Relevant additional experience	- 30 Marks
Relevant additional Educational/professional qualifications	- 30 Marks
Other achievements	- 15 Marks
Performance at the interview	- 25 Marks
	<u>- 100 Marks</u>

Appointments will be made purely in order of merit.

4.6 Qualifying Date

The applicant can be treated as qualified only if he/she has completed the necessary qualifications specified under 4.1, 4.2, and 4.3 before the closing date of applications.

4.7 Extension of Service

The term of an employee contracted to this position may be extended at the end of the contract period provided that his / her performance and conduct has been satisfactory during the above period.

4.8 Acting Period

An internal employee who is already contracted under another post will be subjected to an acting period of one year if appointed to this position.

5. Appointing Authority

The Appointment Authority will be the Board of Directors of the Data Protection Authority.

DATA PROTECTION AUTHORITY

SCHEME OF RECRUITMENT FOR THE POST OF DIRECTOR

1. Employee Category

Senior Manager / Director

2.2.1 Broad Definition of the Nature of Functions Assigned to the Employees of the Category

Management Functions, relating to the role conferred upon the Institution specifically assigned to the post, by the Board of Directors of the Institution, to facilitate / support the role of the Director General as an immediate subordinate to the Director General.

2.2 Posts falling within this service category

Director - Human Resources and Administration
Director - Legal and Enforcement
Director - Dispute Resolution
Director - Finance
Internal Auditor

2.3 Job Description

Director - Human Resources and Administration

- (i) Manage all Human Resource Management functions including Recruitment. Induction. Remuneration and Benefits, Performance Management and Staff Engagement.
- (ii) Assess the competency gaps of the staff and arrange suitable training opportunities for their competency development.
- (iii) Take responsibility for the administration of the office premises and manage all logistics to enable the smooth functioning of the Authority.
- (iv) Manage all procurements on behalf of the Authority.
- (v) Manage all outsourced service providers to the Authority.
- (vi) Handle any other function relating to Human Resources and Administration, assigned by the Head of the Institution.

Director - Legal and Enforcement

- i. Provide legal support and advice to the Board and all other Divisions of the Authority.
- ii. Handle all legal documentation for the Authority.
- iii. Handle all litigation matters relating to the Authority.
- iv. Facilitate entering into agreements and memoranda of understanding with other relevant institutions in Sri Lanka and overseas.

- v. Liaise with the Attorney General's Department, Legal Draftsman's Department, and other external parties.
- vi. Carry out any other function related to Legal and Enforcement, assigned by the Head of the Institution.

Director - Dispute Resolution

- i. Receive complaints from data subjects and any other aggrieved parties and conduct inquiries, in accordance with the provisions of the Personal Data Protection Act, No. 9 of 2022.
- ii. Require any persons to appear before the Data Protection Authority and examine persons under oath where necessary.
- iii. Enter the premises of any controller or processor of data, inspect or seize records, and carry out investigations.
- iv. Make directives and recommend fines, penalties, and other appropriate actions to be taken in accordance with the Personal Data Protection Act, No. 9 of 2022.
- v. Carry out any other function related to Dispute Resolution and Investigations, assigned by the Head of the Institution.

Director - Finance

- i. Manage the Income and Expenditure of the Authority exercising proper budgetary control.
- ii. Maintain Accounts in accordance with Sri Lanka Accounting Standards.
- iii. Prepare final accounts and compile the Annual Report for submission to Parliament.
- iv. Prepare Monthly MIS reports for the Board.
- v. Prepare performance reports for submission to the Minister as required.
- vi. Manage the investments and other assets of the Authority.
- vii. Carry out any other function related to Finance, assigned by the Head of the Institution.

Internal Auditor

- i. Develop and implement comprehensive audit plans based on risk assessments.
- ii. Conduct internal audits to assess the effectiveness of internal controls, financial systems, and compliance with regulations.
- iii. Execute audit procedures, including testing and evaluation of processes, to ensure the accuracy and reliability of financial information.
- iv. Identify and assess potential risks and vulnerabilities within the institution.
- v. Analyze financial statements and related documents to identify discrepancies, irregularities, and areas for improvement.
- vi. Provide recommendations to enhance financial controls and reporting processes.
- vii. Prepare detailed and accurate audit reports summarizing findings, recommendations, and action plans.

- viii. Communicate audit results to management, highlighting areas of concern and opportunities for improvement.
- ix. Carry out other functions related to the subject, assigned by the Head of the Institution.

2.4 Nature of Appointment

- i. Fixed-term contract initially for a period of three (03) years with entitlement to Employees' Provident Fund and Employees' Trust Fund.
- ii. The renewal of this contract will depend on the needs of the Data Protection Authority, based on the job holder's performance.
- iii. Any eligible officer in public service seeking secondment to this position is responsible for coordinating with their line Ministry to release him/her from the service on secondment basis under the prevailing provisions specified by the Ministries in charge of Public Administration, Finance, and other authorities. They should submit their applications through the Heads of the respective Ministries/Departments/institutions.
- iv. The secondment period is initially for one (01) year, and the renewals will be subject to the job holder's performance and other institutional requirements.

3. Emoluments

3.1 Salary and Allowances: All-inclusive monthly salary of Rs. 391,550/- (Three Hundred Ninety One Thousand Five Hundred and Fifty Rupees). This is the salary decided as per the provision of the Personal Data Protection Act, No. 9 of 2022 and the Cabinet Decision dated 22.07.2024 pertaining to the Cabinet Memorandum No. 24/1298/630/014 on payment of salaries and allowances of Data Protection Authority.

3.2 In every letter of appointment, the salary to be mentioned.

4. Recruitment to the post of Director

4.1 Qualifications

4.1.1 External

Director - Human Resources and Administration

- (a) A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Human Resource Management, Business Administration, Public Administration or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

and

Postgraduate Degree (Master's) in Human Resource Management, Business Administration, Public Administration, Commerce or any other field relevant to the post or Chartered Membership of a recognized professional Chartered Institute, which is relevant to the subject area of the post

with

At least ten (10) years of managerial experience in Human Resources and Administration with a proven track record in a public corporation, statutory board, or fully government owned company, or a reputed mercantile establishment after obtaining the first Degree.

or

(b) Fellow Membership of a recognized professional Chartered Institution, in a field related to the post

with

At least ten (10) years of managerial experience in Human Resources and Administration with a proven track record in a public corporation, statutory board, or fully government owned company, or a reputed mercantile establishment after obtaining the first Degree.

Director - Legal and Enforcement

Attorney-at-Law with a Postgraduate Degree in Law

with

At least ten (10) years of institutional /subject experience of which 05 years should be in a managerial role within public or private sectors with evidence of handling legal and enforcement functions, preferably within the regulatory environment, after giving oaths as an Attorney-at-law.

Director - Dispute Resolution

(a) A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka.

and

A Postgraduate Degree (Master's) in Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management, Business Administration, Economics or any other field relevant to the post or Associate Membership of a recognized professional Chartered Institute in Information Technology

with

At least ten (10) years of managerial level experience in corporation, statutory board/institution or reputed private institution.

or

(b) Fellow membership of a recognized professional Chartered Institute, which is relevant to the subject area of the post

and

At least ten (10) years of managerial level experience in corporation, statutory board/institution or reputed private institution.

or

(c) Attorney-at-Law with a Postgraduate Degree (Masters) in a field relevant to the post

with

At least ten (10) years of managerial level experience in corporation, statutory board/institution or reputed private institution.

Director - Finance / Internal Auditor

- (a) A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Accountancy, Finance, Business Administration, Commerce or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

and

Associate Membership of a recognized professional Chartered Institution in Accountancy

with

At least ten (10) years of managerial level experience in corporation, statutory board/institution or reputed private institution

or

- (b) Fellow Membership of a recognized professional Chartered Institution in Accountancy

with

At least ten (10) years of managerial level experience in corporation, statutory board/institution or reputed private institution.

4.1.2 Internal

Having obtained the qualifications required by the external candidates above.

and

Proven ability to lead and direct multi-disciplinary teams together with experience in proper deployment and efficient management of human and other resources to discharge duties up to the expected standards and performance targets.

4.2 Age

Age should be not less than 30 years and not more than 55 years.

4.3 Other

Every applicant -

- i. Should be a citizen of Sri Lanka.
- ii. Should be physically and mentally fit to discharge the duties of the post well and to serve in any part of the Island.
- iii. Should be of excellent moral character.
- iv. Should have a good command of the English and Sinhala/Tamil language as interactions with high level national institutions, international agencies and other institutions overseas is a job requirement.
- v. Familiarity with the global trends in laws related to the digital ecosystem, data protection/privacy, national priorities to mainstream digitalization. and related knowledge will provide an advantage.

- vi. Should sign a Non-Disclosure Agreement with the Authority to maintain confidentiality of the duties and associated information that could be defined as sensitive.
- vii. Any other applicable terms and conditions as specified in the Personal Data Protection Act, No. 9 of 2022.

4.4 Recruitment Procedure

As determined by the Board of Directors, recruitment shall be done after calling applications through a public advertisement or a Newspaper advertisement followed by a structured interview conducted by a panel appointed by the appointing authority.

- i. All recruitments to this category shall be strictly in compliance with the provision of this Scheme of Recruitment.
- ii. The Human Resources and Administration Manual of Procedure of the Authority approved by the Department of Public Enterprises shall be applicable to terms of employment after recruitment and all matters pertaining to that.
- iii. The provision in this Scheme of Recruitment shall supersede the provisions in the Manual in respect of all matters provided in this Scheme of Recruitment.

4.5 Marks allocated for the Interview

Marks allocated shall be as follows:

Relevant additional experience	- 30 Marks
Relevant additional Educational/professional qualifications	- 30 Marks
Other achievements	- 15 Marks
Performance at the interview	- 25 Marks
	<u>100 Marks</u>

Appointments will be made purely in order of merit.

4.6 Qualifying Date

The applicant can be treated as qualified only if he/she has completed the necessary qualifications specified under 4.1, 4.2, and 4.3 before the closing date of applications.

4.7 Extension of Service

The term of an employee contracted to this position may be extended at the end of the contract period provided that his / her performance and conduct has been satisfactory during the above period.

4.8 Acting Period

An internal employee who is already contracted under another post will be subjected to an acting period of one year if appointed to this position.

5. Appointing Authority

The Appointment Authority will be the Board of Directors of the Data Protection Authority.

DATA PROTECTION AUTHORITY

SCHEME OF RECRUITMENT FOR THE POST OF ASSISTANT DIRECTOR IN THE MANAGER CATEGORY

1. Employee Category

Manager

2.2.1 Broad Definition of the Nature of Functions Assigned to the Employees of the Category

Functions by their general nature, fall within the processes of policy making, directions, managing and decision making that can be considered as components of the role assigned to the Chief Executive Officer of the institution. Post specifically delegated in a manner supplementary to/ facilitating the discharging of duties by the Chief Executive Officer.

2.2 Posts falling within this service category

Assistant Director - Regulatory Strategy
Assistant Director - Market Supervision
Assistant Director - Capacity Building
Assistant Director - Information Technology
Assistant Director - Human Resources and Administration
Assistant Director - Finance
Assistant Director - Legal and Enforcement
Assistant Director - Dispute Resolution

2.3 Job Description

Assistant Director - Regulatory Strategy

- i. Assist in formulation of rules, guidelines, and prescriptions to be issued under the Personal Data Protection Act, No. 9 of 2022 in alignment with the objectives and provisions of the legislation.
- ii. Support the drafting of regulations to be issued by the Minister in accordance with the Act.
- iii. Collaborate with the Director to study international data protection laws and enforcement mechanisms, and recommend adequacy decisions to the Minister regarding cross-border data flows.
- iv. Contribute to the establishment of standards in relation to data protection, data storage, data processing, and other related matters, in accordance with the requirements of the Act and relevant regulations.
- v. Assist in ensuring effective domestic compliance of data protection obligations under international conventions and agreements, collaborating with relevant stakeholders and authorities.
- vi. Undertake research into the use and impact of new technologies on the processing of personal data, staying abreast of industry trends and emerging issues.
- vii. Support the issuance of licenses to controllers and processors requiring a license for the purpose of regulating identity management and related services, ensuring compliance with regulatory requirements.
- viii. Carry out any other functions related to regulatory strategy as assigned by the Senior Director - Regulatory Strategy/ Head of the Institution.

Assistant Director - Capacity Building

- i. Facilitate or undertake training programs based on international best practices for controllers and processors to ensure effective implementation of data protection regulations.
- ii. Develop and implement awareness programs targeting multiple stakeholders in accordance with an annual plan approved by the Board, utilizing various communication channels and strategies.
- iii. Assess the competency gaps of staff members and coordinate suitable training opportunities to enhance their skills and knowledge in data protection and related areas.
- iv. Collaborate with internal departments, external partners, and subject matter experts to design, deliver, and evaluate the effectiveness of training initiatives, gather feedback from participants, and make recommendations for continuous improvement.
- v. Perform any other functions related to capacity building, awareness creation, and staff development as assigned by the Senior Director - Market Supervision and Capacity Building/Head of the Institution.

Assistant Director - Market Supervision

- i. Engage with designated Data Protection Officers of Public and Private Sector entities to provide guidance and instructions on data protection compliance.
- ii. Monitor and examine all data processing operations to ensure adherence to data protection laws and regulations by controllers and processors.
- iii. Issue-specific directives to controllers and processors as necessary to ensure compliance with data protection standards.
- iv. Conduct periodic evaluations of data processing activities carried out by controllers and processors to ensure ongoing compliance and identify areas for improvement.
- v. Collaborate with the Director and other relevant stakeholders to develop and implement policies, procedures, and guidelines related to data protection and market supervision.
- vi. Perform any other duties related to market supervision as assigned by the Senior Director - Market Supervision and Capacity Building.

Assistant Director - Information Technology

- i. Contribute to the development and execution of the institution's digitalization strategy and oversee the design, implementation, and maintenance of the institution's technology infrastructure.
- ii. Collaborate with the Director General and other Directors to align technology initiatives with service-oriented goals of the Authority.
- iii. Ensure the availability, security, and performance of networks, servers, and other information technology systems and support related procurements and contract management.
- iv. Oversee the information technology helpdesk, ensuring timely and effective resolution of user issues.
- v. Develop and implement information technology training programs to enhance the technology literacy of the staff.
- vi. Attend to other special assignments as defined by the Director General I Head of the Institution.

Assistant Director - Human Resources and Administration

- i. Assist in managing all aspects of human resource management, including recruitment, selection, onboarding, training, performance management, and employee relations.
- ii. Collaborate with the Director to develop and implement Human Resource policies, procedures, and initiatives to support institutional goals and promote a positive work culture.
- iii. Manage logistics and procurement activities to support the smooth functioning of the Authority.
- iv. Collaborate with the Director to develop and monitor budgets for Human Resources, administration, and logistics functions, ensuring cost-effective allocation of resources.
- v. Handle any other functions related to human resources, administration, and logistics as assigned by the Director - Human Resources and Administration/ Head of the Institution.

Assistant Director - Finance

- i. Assist the Director - Finance in developing and implementing financial policies and procedures.
- ii. Oversee day-to-day financial activities, including budgeting, forecasting, and financial reporting.
- iii. Assist in the preparation and monitoring of the annual budget of the Authority, Monitor and analyze financial performance against budget, and provide recommendations for improvement.
- iv. Ensure compliance with the approved Financial Regulations and reporting requirements.
- v. Prepare accurate and timely financial reports for internal and external stakeholders including mandatory periodic reports to the line Ministry and the Ministry of Finance.
- vi. Perform any other duties related to Finance as assigned by the Director - Finance / Head of the Institution.

Assistant Director - Legal and Enforcement

- i. Provide legal support and advice to the Board and all divisions of the Authority and Draft, review, and manage all legal documentation for the Authority, including contracts, agreements, policies, and procedures, ensuring compliance with relevant laws and regulations.
- ii. Handle all litigation matters relating to the Authority, including representing the institution in court proceedings, mediation, and arbitration, as necessary.
- iii. Liaise with the Attorney General's Department, Legal Draftsman's Department, and other external parties on legal matters affecting the Authority, including seeking legal opinions, coordinating legal proceedings, and resolving legal disputes.
- iv. Perform any other duties related to legal and enforcement activities as assigned by the Head of the Institution.

Assistant Director - Dispute Resolution

- i. Receive and review complaints from data subjects and other concerned parties regarding potential breaches of data protection regulations.
- ii. Assist in conducting comprehensive inquiries and investigations into alleged violations of data protection laws, following established protocols and legal procedures.

- iii. Assist in drafting directives and recommendations for fines, penalties, or other corrective actions in accordance with the applicable legislation.
- iv. Maintain accurate records of investigations, findings, and actions taken, ensuring confidentiality and compliance with data protection regulations.
- v. Perform any other duties related to dispute resolution and investigations as assigned by the Head of the Institution.

2.4 Nature of Appointment

- i. Fixed-term contract initially for a period of three (03) years with entitlement to Employees' Provident Fund and Employees' Trust Fund.
- ii. The renewal of this contract will depend on the needs of the Data Protection Authority, based on the job holder's performance.
- iii. Any eligible officer in public service seeking secondment to this position is responsible for coordinating with their line Ministry to release him/her from the service on secondment basis under the prevailing provisions specified by the Ministries in charge of Public Administration, Finance, and other authorities. They should submit their applications through the Heads of the respective Ministries/Departments/Institutions.
- iv. The secondment period is initially for one (01) year, and the renewals will be subject to the job holder's performance and other institutional requirements.

3. Emoluments

3.1 Salary and Allowances: All-inclusive monthly salary of Rs. 194,675/- (One Hundred Ninety Four Thousand Six Hundred and Seventy-Five Rupees). This is the salary decided as per the provision of the Personal Data Protection Act, No. 9 of 2022 and the Cabinet Decision dated 22.07.2024 pertaining to the Cabinet Memorandum No. 24/1298/630/014 on payment of salaries and allowances of Data Protection Authority.

3.2 In every letter of appointment, the salary to be mentioned

4. Recruitment to the post of Assistant Director

4.1 Qualifications

4.1.1 External

Assistant Director - Regulatory Strategy

A Bachelor 's Degree recognized by the University Grant Commission of Sri Lanka in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

and

A Postgraduate Degree (Masters') in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other relevant Postgraduate Degree to the post, or Associate Membership of a recognized Professional Chartered Institution in Information Technology or related field or be an Attorney-at-Law

with

At least six (06) years of managerial level experience in corporation, statutory board/institution or reputed private institution.

Assistant Director - Market Supervision

A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other Degree relevant to the post, recognized by the University Grant Commission (UGC) of Sri Lanka

and

A Postgraduate Degree (Master's) in Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other field relevant to the post or Associate Membership of a recognized professional Chartered institution in Information Technology or related field or be an Attorney-at-Law

with

At least six (06) years of managerial level experience in corporation, statutory board/institution or reputed private institution.

Assistant Director - Capacity Building

A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management, Business Administration, Human Resource Management, Economics or any other Degree relevant to the post. recognized by the University Grant Commission of Sri Lanka

and

A Postgraduate Degree (Masters') in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management, Business Administration/ Human Resource Management, Economics or any other field relevant to the post, or Associate Membership of a recognized professional chartered institution in Information Technology, Accounting, Marketing or related field or be an Attorney-at-Law

with

At least six (06) years of managerial level experience in corporation, statutory board/Institution or reputed private institution.

Assistant Director - Information Technology

A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

and

A Postgraduate Degree (Master's) in Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other field relevant to the post, or Associate Membership of a recognized professional chartered institution in Information Technology or related field

with

At least six (06) years of managerial level experience in corporation, statutory board/Institution or reputed private institution.

Assistant Director - Human Resources and Administration

A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Human Resource Management, Business Administration, Public Administration or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

and

Postgraduate Degree (Master's) in Human Resource Management, Business Administration, Public Administration or any other field relevant to the post, or Chartered Membership of a recognized professional Chartered Institution, which is relevant to the subject area of the post

with

At least six (06) years of managerial level experience in corporation, statutory board/Institution or reputed private institution.

Assistant Director - Finance

A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Accountancy, Finance, Business Administration, Commerce or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

and

Associate Membership of a recognized professional Chartered Institution in Accountancy

with

At least six (06) years of managerial level experience in corporation, statutory board/Institution or reputed private institution.

or

Fellow Membership of a recognized professional Chartered Institution in Accountancy

with

At least six (06) years of managerial level experience in corporation, statutory board/Institution or reputed private institution.

Assistant Director - Legal and Enforcement

Attorney-at-Law with a Postgraduate Degree (Masters) in Law

with

At least six (06) years of managerial level experience in corporation, statutory board/Institution or reputed private institution.

Assistant Director - Dispute Resolution

A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Law, Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

and

A Postgraduate Degree (Master 's) in Information Technology, Computer Science, Computer Engineering, Data Science, Data Processing Management or any other field relevant to the post, or Associate Membership of a recognized professional Chartered Institution, in Information Technology or be an Attorney-at-Law

with

At least six (06) years of managerial level experience in corporation, statutory board/Institution or reputed private institution.

4.1.2 Internal

Having obtained the qualifications required by the external candidates above.

4.2 Age

Age should be not less than 30 years and not more than 55 years.

4.3 Other

Every applicant -

- i. Should be a citizen of Sri Lanka.
- ii. Should be physically and mentally fit to discharge the duties of the post well and to serve in any part of the Island.
- iii. Should be of excellent moral character.
- iv. Should have a good command of the English and Sinhala/Tamil language as interactions with high level national institutions, international agencies and other institutions overseas is a job requirement.
- v. Familiarity with the global trends in laws related to the digital ecosystem, data protection/privacy, national priorities to mainstream digitalization, and related knowledge will provide an advantage.
- vi. Should sign a Non-Disclosure Agreement with the Authority to maintain confidentiality of the duties and associated information that could be defined as sensitive.
- vii. Any other applicable terms and conditions as specified in the Personal Data Protection Act, No. 9 of 2022.

4.4 Recruitment Procedure

As determined by the Board of Directors, recruitment shall be done after calling applications through a public advertisement or a Newspaper advertisement followed by a structured interview conducted by a panel appointed by the appointing authority.

- (i) All recruitments to this category shall be strictly in compliance with the provision of this Scheme of Recruitment.
- (ii) The Human Resources and Administration Manual of Procedure of the Authority approved by the Department of the Public Enterprises shall be applicable to terms of employment after recruitment and all matters pertaining to that.
- (iii) The provision in this Scheme of Recruitment shall supersede the provisions in the Manual in respect of all matters provided in this Scheme of Recruitment.

4.5 Marks allocated for the Interview

Marks allocated shall be as follows:

Relevant additional experience	30 Marks
Relevant additional Educational/professional qualifications	30 Marks
Other achievements	15 Marks
Performance at the interview	25 Marks
	<u>100 Marks</u>

Appointments will be made purely in order of merit.

4.6 Qualifying Date

The applicant can be treated as qualified only if he/she has completed the necessary qualifications specified under 4.1, 4.2, and 4.3 before the closing date of applications.

4.7 Extension of Service

The term of an employee contracted to this position may be extended at the end of the contract period provided that his / her performance and conduct has been satisfactory during the above period.

4.8 Acting Period

An internal employee who is already contracted under another post will be subjected to an acting period of one year if appointed to this position.

5. Appointing Authority

The Appointment Authority will be the Board of Directors of the Data Protection Authority.

DATA PROTECTION AUTHORITY

SCHEME OF RECRUITMENT FOR THE POST OF ASSOCIATE OFFICER (TECHNICAL)

1. Employee Category

Associate Officer

2. 2.1 Broad Definition of the Nature of Functions Assigned to the Employees of the Category

An employee category to which basic entry qualification for enrolment has to be not below the level of a degree awarded by a recognized university and assigned with functions such as operational assistance to managerial grades, conducting of surveys, collection and compilation of data/statistics, drafting of reports to facilitate the role assigned to the senior managerial/ managerial grades of the Data Protection Authority.

2.2 Posts falling within this service category

- *Associate Officer (Technical) - Regulatory Strategy
- *Associate Officer (Technical) - Market Supervision
- *Associate Officer (Technical) - Capacity Building
- *Associate Officer (Technical) - Information Technology
- *Associate Officer (Technical) - Legal and Enforcement
- *Associate Officer (Technical) - Dispute Resolution

2.3 Job Description

Associate Officer (Technical) - Regulatory Strategy

- (i) Assist in formulating rules, guidelines, and prescriptions under the Personal Data Protection Act, No. 9 of 2022 aligning with legislative objectives and provisions.
- (ii) Provide support in drafting regulations to be issued by the Minister in accordance with the Act.
- (iii) Contribute to the establishment of standards related to data protection, storage, processing, and other relevant matters, in accordance with legislative requirements.
- (iv) Execute any other functions related to regulatory strategy as assigned by the senior managerial/managerial grades/ Head of the Institution.

Associate Officer (Technical) - Market Supervision

- (i) Assist in engaging with designated Data Protection Officers of Public and Private Sector entities to provide guidance and instructions on data protection compliance.
- (ii) Provide support in monitoring and examining data processing operations (both onsite and off site) to ensure adherence to data protection laws and regulations by controllers and processors.
- (iii) Contribute to the issuance of specific directives to ensure compliance with data protection standards by controllers and processors.
- (iv) Assist in conducting periodic evaluations of data processing activities carried out by controllers and processors.
- (v) Execute any other functions related to market supervision as assigned by the senior managerial/managerial grades/ Head of the Institution.

Associate Officer (Technical) - Capacity Building

- (i) Assist in organizing and implementing training and capacity building programs for target external audiences to ensure effective implementation of data protection regulations.
- (ii) Assist in designing awareness programs targeting multiple external stakeholders in accordance utilizing various communication channels and strategies, including digital media.
- (iii) Contribute to initiatives on evaluating the effectiveness of training initiatives, gather feedback from participants, and make recommendations for continuous improvement.
- (iv) Perform any other functions related to capacity building, awareness creation as assigned by the Assistant Director - Capacity Building/ Head of the Institution.

Associate Officer (Technical) - Information Technology

- i. Serve in the team for the development and execution of the institution's digitalization strategy and oversee the design, implementation, and maintenance of the institution's technology infrastructure.
- ii. Collaborate with the Information Technology Executive to align technology initiatives with service-oriented goals of the Authority.
- iii. Setting up systems to ensure the availability, security, and performance of key digital infrastructure, other information technology systems and support related procurements and contract management.
- iv. Taking measures to set up and operationalize the information technology helpdesk, ensuring timely and effective resolution of user issues.
- v. Assist in conducting information technology training programs/sessions to enhance the technology literacy of the staff.
- vi. Attend to other special assignments as defined by the Information Technology Executive.
- vii. Any other functions related to the subject as assigned by the Head of the Institution.

Associate Officer (Technical) - Legal and Enforcement

- i. Assist in formulating rules, guidelines, and prescriptions under the Personal Data Protection Act, No. 9 of 2022 aligning with legislative objectives and provisions.
- ii. Provide support in drafting regulations to be issued by the Minister in accordance with the Act.
- iii. Contribute to the establishment of standards related to data protection, storage, processing, and other relevant matters, in accordance with legislative requirements.
- iv. Execute any other functions related to legal and enforcement as assigned by the senior managerial/managerial grades or Head of the Institution.

Associate Officer (Technical) - Dispute Resolution

- i. Assist in receiving and reviewing complaints from data subjects and other concerned parties regarding potential breaches of data protection regulations.
- ii. Assist in conducting comprehensive inquiries and investigations into alleged violations of data protection laws, following established protocols and legal procedures.
- iii. Contribute to the drafting of directives and recommendations for fines, penalties, or other corrective actions in accordance with the applicable legislation.
- iv. Assist in maintaining records of investigations, findings, and actions taken, ensuring confidentiality and compliance with data protection regulations.
- v. Perform any other duties related to dispute resolution and investigations as assigned by the Director/ Assistant Director.

2.4 Nature of Appointment

- i. Fixed-term contract initially for a period of three (03) years with entitlement to Employees' Provident Fund and Employees' Trust Fund.

- ii. The renewal of this contract will depend on the needs of the Data Protection Authority, based on the job holder's performance.
- iii. Any eligible Officer in public service seeking secondment to this position is responsible for coordinating with their line Ministry to release him/her from the service on secondment basis under the prevailing provisions specified by the Ministries in charge of Public Administration, Finance, and other authorities. They should submit their applications through the Heads of the respective Ministries/Departments/institutions.
- iv. The secondment period is initially for one (01) year, and the renewals will be subject to the job holder's performance and other institutional requirements.

3. Emoluments

3.1 Salary and Allowances: All-inclusive monthly salary of Rs 59,300/- (Fifty Nine Thousand and Three Hundred Rupees). This is the salary decided as per the provision of the Personal Data Protection Act, No. 9 of 2022 and the Cabinet Decision dated 22.07.2024 pertaining to the Cabinet Memorandum No. 24/1298/630/014 on payment of salaries and allowances of Data Protection Authority.

3.2 In every letter of appointment, the salary to be mentioned.

4. Recruitment to the post of Associate Officer (Technical)

4.1 Qualifications

4.1.1 External

Associate Officer (Technical) - Regulatory Strategy

A Bachelor 's Degree recognized by the University Grant Commission of Sri Lanka in Law, Legal Studies, Computer Science, Information Technology, Information Security, Cyber Security, Data Science or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

with

At least two (02) years of experience in similar roles within public or private sector.

Associate Officer (Technical) - Market Supervision

A Bachelor 's Degree recognized by the University Grant Commission of Sri Lanka in Computer Science, Information Technology, Cyber Security, Data Science, Economics, Finance, Business Studies or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

with

At least two (02) years of experience in similar roles within public or private sector.

Associate Officer (Technical) - Capacity Building

A Bachelor 's Degree recognized by the University Grant Commission of Sri Lanka in Computer Science, Information Technology, Cyber Security, Data Science, Statistics, Business Studies. Management, Information Communication or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

with

At least two (02) years of experience in similar roles within public or private sector.

Associate Officer (Technical) - Information Technology

A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Information Technology, Computer Science, Computer Engineering, Data Science, Cyber Security, Data Processing Management, or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

with

At least two (02) years of experience in similar roles within public or private sector.

Associate Officer (Technical) - Legal and Enforcement

A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Law, Legal Studies, Computer Science, Information Technology, Cyber Security, or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

with

At least two (02) years of experience in similar roles within public or private sector.

Associate Officer (Technical) - Dispute Resolution

A Bachelor's Degree recognized by the University Grant Commission of Sri Lanka in Law, Computer Science, Information Technology, Information Security, Cyber Security, Data Science, Social Science, Business Studies, or any other Degree relevant to the post, recognized by the University Grant Commission of Sri Lanka

with

At least two (02) years of experience in similar roles within public or private sector.

4.1.2 Internal

Having obtained the qualifications required by the particular external candidates above.

4.2 Age

Age should be not less than 22 years and not more than 45 years.

4.3 Other

Every applicant -

- i. Should be a citizen of Sri Lanka.
- ii. Should be physically and mentally fit to discharge the duties of the post well and to serve in any part of the Island.
- iii. Should be of excellent moral character.

- iv. Should have a good command of the English and Sinhala/Tamil language as interactions with high level national institutions, international agencies and other institutions overseas is a job requirement.
- v. Familiarity with the global trends in the digital ecosystem, data protection/privacy and related legal instruments, national priorities to mainstream digitalization, and related knowledge will provide an advantage.
- vi. Should sign a Non-Disclosure Agreement with the Authority to maintain confidentiality of the duties and associated information that could be defined as sensitive.
- vii. Any other applicable terms and conditions as specified in the Personal Data Protection Act, No. 9 of 2022.

4.4 Recruitment Procedure

As determined by the Board of Directors, recruitment shall be done after calling applications through a public advertisement or a Newspaper advertisement followed by a structured interview conducted by a panel appointed by the appointing authority.

- i. All recruitments to this category shall be strictly in compliance with the provision of this Scheme of Recruitment.
- ii. The Human Resources and Administration Manual of Procedure of the Authority approved by the Department of Public Enterprises shall be applicable to terms of employment after recruitment and all matters pertaining to that.
- iii. The provision in this Scheme of Recruitment shall supersede the provisions in the Manual in respect of all matters provided in this Scheme of Recruitment.

4.5 Marks allocated for the Interview

Marks allocated shall be as follows:

Relevant additional experience	- 30 Marks
Relevant additional Educational/professional qualifications	- 30 Marks
Other achievements	- 15 Marks
Performance at the interview	- 25 Marks
	<u>100 Marks</u>

Appointments will be made purely in order of merit.

4.6 Qualifying Date

The applicant can be treated as qualified only if he/she has completed the necessary qualifications specified under 4.1, 4.2, and 4.3 before the closing date of applications.

4.7 Extension of Service

The term of an employee contracted to this position may be extended at the end of the contract period provided that his / her performance and conduct has been satisfactory during the above period.

4.8 Acting Period

An internal employee who is already contracted under another post will be subjected to an acting period of one year if appointed to this position.

5. Appointing Authority

The Appointment Authority will be the Board of Directors of the Data Protection Authority.

DATA PROTECTION AUTHORITY

SCHEME OF RECRUITMENT FOR THE POSTS IN THE EMPLOYEE CATEGORY OF MANAGEMENT ASSISTANT - NON - TECHNICAL

1. Employee Category

Management Assistant - Non-Technical

2.2.1 Broad Definition of the Nature of Functions Assigned to the Employees of the Category

Functions and Activities of non - technological nature specially assigned by the appointing authority / Chief Executive Officer to facilitate /support / supplement the discharging of duties by the Managerial, Administrative and Executive Grades of the Institution.

2.2 Posts falling within this service category

Management Assistant

2.3 Job Description

- Assist in the discharge of the internal processes of the Board of Directors and/or assigned to the divisions of general or specified subject areas.
- Maintenance of documents and records in a systematic way to assist in efficient decision-making processes of the senior staff.
- Assist in organizing seminars, workshops, field activities, financing and logistics.
- Execute any other functions as assigned by the senior managerial Grades / Head of the Authority.

2.4 Nature of Appointment

- Fixed-term contract initially for a period of three (03) years with entitlement to Employees' Provident Fund and Employees' Trust Fund.
- The renewal of this contract will depend on the needs of the Data Protection Authority, based on the job holder's performance.
- Any eligible officer in public service seeking secondment to this position is responsible for coordinating with their line Ministry to release him/her from the service on secondment basis under the prevailing provisions specified by the Ministries in charge of Public Administration, Finance, and other authorities. They should submit their applications through the Heads of the respective Ministries/Departments/institutions.
- The secondment period is initially for one (01) year, and the renewals will be subject to the job holder's performance and other institutional requirements.

3. Emoluments

- Salary and Allowances: All-inclusive monthly salary of Rs. 52,800/- (Fifty Two Thousand and Eight Hundred Rupees). This is the salary decided as per the provision of the Personal Data Protection Act, No. 9 of 2022 and the Cabinet Decision dated 22.07.2024 pertaining to the Cabinet Memorandum No. 24/1298/630/014 on payment of salaries and allowances of Data Protection Authority.

3.2 In every letter of appointment, the salary to be mentioned.

4. Recruitment to the Management Assistant Position

4.1 Qualifications

4.1.1 External

Having passed the G.C.E. (O/L.) examination in six subjects in one sitting with credit passes for four subjects including -

- (i) Sinhala /Tamil;
- (ii) English language; and
- (iii) Mathematics

and

Having passed three subjects (other than the General Paper) at the G.C.E. (A/L) examination

with

At least two (02) years of experience in similar roles within public or private sector.

4.2 Age

Age should be not less than 20 years and not more than 45 years.

4.3 Other

Every applicant -

- i. Should be a citizen of Sri Lanka.
- ii. Should be physically and mentally fit to discharge the duties of the post well and to serve in any part of the Island.
- iii. Should be of excellent moral character.
- iv. Should have a good command of the English and Sinhala/Tamil language as interactions with high level national institutions, international agencies and other institutions overseas is a job requirement.
- v. Familiarity with the global trends in the laws related to digital ecosystem, data protection/privacy national priorities to mainstream digitalization and related knowledge will provide an advantage.
- vi. Should sign a Non-Disclosure Agreement with the Authority to maintain confidentiality of the duties and associated information that could be defined as sensitive.
- vii. Any other applicable terms and conditions as specified in the Personal Data Protection Act, No. 9 of 2022.

4.4 Recruitment Procedure

As determined by the Board of Directors, recruitment shall be done after calling applications through a public advertisement or a Newspaper advertisement followed by a structured interview conducted by a panel appointed by the appointing authority.

- i. All recruitments to this category shall be strictly in compliance with the provision of this Scheme of Recruitment.
- ii. The Human Resources and Administration Manual of Procedure of the Authority approved by the Department of Public Enterprises shall be applicable to terms of employment after recruitment and all matters pertaining to that.
- iii. The provision in this Scheme of Recruitment shall supersede the provisions in the Manual in respect of all matters provided in this Scheme of Recruitment.

4.5 Marks allocated for the Interview -

Marks allocated shall be as follows:

Relevant additional experience	- 30 Marks
Relevant additional Educational/professional qualifications	- 30 Marks
Other achievements	- 15 Marks
Performance at the interview	- 25 Marks
	<u>100 Marks</u>

Appointments will be made purely in order of merit.

[If selected through a written competitive examination and a structured interview, final selection will be in the order of merit based on the aggregate of 60% of the marks obtained at the written examination and 40% of the marks obtained at the interview. If selected through a structured interview - appointments will be made purely in the order of merit at the interview]

4.6 Qualifying Date -

The applicant can be treated as qualified only if he/she has completed the necessary qualifications specified under 4.1, 4.2, and 4.3 before the closing date of applications.

4.7 Extension of Service -

The term of an employee contracted to this position may be extended at the end of the contract period provided that his / her performance and conduct has been satisfactory during the above period.

4.8 Acting Period -

An internal employee who is already contracted under another post will be subjected to an acting period of one year if appointed to this position.

5. Appointing Authority -

The Appointment Authority will be the Board of Directors of the Data Protection Authority.

DATA PROTECTION AUTHORITY

SCHEME OF RECRUITMENT FOR THE POST IN THE EMPLOYEE CATEGORY OF "PRIMARY LEVEL" -SKILLED

1. Employee Category :

Primary Level - Skilled Category

2.2.1 Broad Definition of the Nature of Functions Assigned to the Employees of the Category -

Office Assistants typically handle a variety of internal office tasks, including answering phones, managing correspondence, scheduling appointments, maintaining office supplies, data entry, and providing general support to colleagues. They often serve as the first point of contact for visitors and may assist with customer inquiries. In essence, their role revolves around ensuring the smooth functioning of daily office operations.

2.2 Posts falling within this service category

Office Assistant

2.3 Job Description

- i. Greet visitors and direct them to the appropriate officer(s) or divisions.
- ii. Answer and direct phone calls in a professional manner.
- iii. Assist with stores and supply management, clerical tasks, including photocopying, scanning, filing, and data entry.
- iv. Sort and distribute incoming mail and prepare outgoing mail for postage.
- v. Assist in coordinating office events and meetings, including arranging logistics and refreshments.
- vi. Keep the whole office area clean and organized.
- vii. Any other duties as assigned by the Head of the Institution.

2.4 Nature of Appointment -

- i. Fixed-term contract initially for a period of three (03) years with entitlement to Employees' Provident Fund and Employees' Trust Fund.
- ii. The renewal of this contract will depend on the needs of the Data Protection Authority, based on the job holder's performance.
- iii. Any eligible officer in public service seeking secondment to this position is responsible for coordinating with their line Ministry to release him/her from the service on secondment basis under the prevailing provisions specified by the Ministries in charge of Public Administration, Finance, and other authorities. They should submit their applications through the Heads of the respective Ministries/Departments/institutions.
- iv. The secondment period is initially for one (01) year, and the renewals will be subject to the job holder's performance and other institutional requirements.

3. Emoluments :

3.1 Salary and Allowances: All-inclusive monthly salary of Rs. 47,800/- (Forty Seven Thousand and Eight Hundred Rupees). This is the salary decided as per the provision of the Personal Data Protection Act, No. 9 of 2022 and the Cabinet Decision dated 22.07.2024 pertaining to the Cabinet Memorandum No. 24/1298/630/014 on payment of salaries and allowances of Data Protection Authority.

3.2 In every letter of appointment the salary to be mentioned.

4. Recruitment to the Office Assistant Position

4.1 Qualifications

4.1.1 External

Shall have passed six (06) subjects in G.C.E. Ordinary Level in not more than two (02) sittings with at least two (02) credits.

4.2 Age

Age should be not less than 18 years and not more than 45 years.

4.3 Other

Every applicant -

- i. Should be a citizen of Sri Lanka.
- ii. Should be physically and mentally fit to discharge the duties of the post well and to serve in any part of the Island.
- iii. Should be of excellent moral character.
- iv. Should have a good command of Sinhala/Tamil language as well as English due to the fact that interactions with high-level national institutions, international agencies and other institutions overseas is a job requirement.
- v. Familiarity with the global trends in laws related to the digital ecosystem, data protection/privacy, national priorities to mainstream digitalization and related knowledge will provide an advantage.
- vi. Should sign a Non-Disclosure Agreement with the Authority to maintain confidentiality of the duties and associated information that could be defined as sensitive.
- vii. Any other applicable terms and conditions as specified in the Personal Data Protection Act, No. 9 of 2022.

4.4 Recruitment Procedure

As determined by the Board of Directors, recruitment shall be done after calling applications through a public advertisement or a Newspaper advertisement followed by a structured interview conducted by a panel appointed by the appointing authority.

- i. All recruitments to this category shall be strictly in compliance with the provision of this Scheme of Recruitment.
- ii. The Human Resources and Administration Manual of Procedure of the Authority approved by the Department of Public Enterprises shall be applicable to terms of employment after recruitment and all matters pertaining to that.
- iii. The provision in this Scheme of Recruitment shall supersede the provisions in the Manual in respect of all matters provided in this Scheme of Recruitment.

4.5 Marks allocated for the Interview

Marks allocated shall be as follows :-

Relevant additional experience	- 30 Marks
Relevant additional Educational qualifications	- 20 Marks
Extra-curricular	- 10 Marks
Other achievements	- 15 Marks
Performance at the interview	- 25 Marks
	<u>100 Marks</u>

Appointments will be made purely in order of merit.

4.6 Qualifying Date

The applicant can be treated as qualified only if he/she has completed the necessary qualifications specified under 4.1, 4.2, and 4.3 before the closing date of applications.

4.7 Extension of Service

The term of an employee contracted to this position may be extended at the end of the contract period provided that his / her performance and conduct has been satisfactory during the above period.

4.8 Acting Period

An internal employee who is already contracted under another post will be subjected to an acting period of one year (01) if appointed to this position.

5. Appointing Authority

The Appointment Authority will be the Board of Directors of the Data Protection Authority.

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